

Hari Om v. Dakshinanchal Vidyut Vitaran Nigam Limited

High Court of Judicature at Allahabad · Division Bench · 1 August 2018 · Writ-C No. 22001 of 2018 · **Writ dismissed; mandamus to decide the 4.4 application refused.**

HEADNOTE

Mandamus to compel DVVNL to decide a 17.03.2018 application/objection under clause 4.4 (I & IV) of the U.P. Electricity Supply Code, 2005 refused. After the petition was called in revise and none appeared, the Division Bench perused the record, found no ground for the relief, dismissed the writ, and vacated any interim order.

FACTUAL SUMMARY

Hari Om petitioned the Allahabad High Court against Dakshinanchal Vidyut Vitaran Nigam Limited seeking a mandamus to decide his application/objection dated 17 March 2018 under Section 4.4 (I & IV) of the U.P. Electricity Supply Code, 2005. The writ was first listed in June 2018. On 1 August 2018 it was called in revise; none appeared to press it. The Division Bench then perused the record itself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

mandamus to decide application/objection

HOLDING

A writ of mandamus commanding the licensee to decide the consumer's 17.03.2018 application/objection as per clause 4.4 (I & IV) of the U.P. Electricity Supply Code, 2005 was refused: on perusal of the petition the Court found no ground entitling the petitioner to that relief, dismissed the writ, and vacated any interim order. ¶ 1

FLAG Prayer cites 'Section 4.4 (I & IV)' in roman capitals; recorded as pleaded, not recast as 4.4(i)/(iv).